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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF 128.7
SANCTIONS**

(CCP § 128.7)

Dept.: 610
Date: June 24, 2026

**PLAINTIFF'S MEMORANDUM OF POINTS AND AUTHORITIES IN
SUPPORT OF MOTION FOR SANCTIONS UNDER CODE OF CIVIL
PROCEDURE SECTION 128.7 (ANTI-SLAPP REPLY DECLARATION
MISCONDUCT)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented

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- Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232
- Baral v. Schnitt (2016) 1 Cal.5th 376
- Day v. Collingwood (2006) 144 Cal.App.4th 1116
- Flatley v. Mauro (2006) 39 Cal.4th 299
- In re Marriage of Falcone & Fyke (2012) 203 Cal.App.4th 964
- JKC3H8 et al. v. Colton et al. (2013) 221 Cal.App.4th 468
- Jay v. Mahaffey (2013) 218 Cal.App.4th 1522
- Li v. Majestic Industry Hills, LLC (2009) 177 Cal.App.4th 585
- Musaelian v. Adams (2009) 45 Cal.4th 512
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- Reichardt v. Hoffman (1997) 52 Cal.App.4th 754
- Reid v. Google, Inc. (2010) 50 Cal.4th 512
- San Diego Watercrafts, Inc. v. Wells Fargo Bank (2002) 102 Cal.App.4th 308
- Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871

I. PROCEDURAL AUTHORITY FOR THE JUNE 24, 2026 HEARING LINE

By minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk), this Court continued the consolidated motion calendar to June 24, 2026, 9:00 a.m., Department 302, and directed: “All parties immediately to provide courtesy copies of their filings per SF Local Rule 2.7B with a cover letter reflecting the new hearing date.” Following the parties’ stipulation,

1 the Court further entered an order consolidating all then-pending Department 302 matters in this
2 action into a single line for argument on June 24, 2026. (See Rosario v. CSAA Ins. Exch., CGC-
3 25-631802, Court Docket / 802 State (May 21, 2026 snapshot, consolidated cohort row).) This
4 motion is timely set for that hearing pursuant to CCP section 1005(b) (sixteen court days before
5 June 24, 2026 is **Tue, June 2, 2026**).

7 **II. STATEMENT OF THE ISSUE**

8 The issue presented is whether Defendant CSAA Insurance Exchange and its counsel of record
9 at Porter Scott, A Professional Corporation, violated Code of Civil Procedure section 128.7(b) by
10 presenting and continuing to advocate four sets of filings in this action, after Plaintiff identified
11 specific certifications and adverse controlling authorities by name in a CCP section 128.7(c)(1)
12 safe-harbor letter, and after the twenty-one-day correction window expired without withdrawal or
13 appropriate correction. The four filings are: (A) the **Anti-SLAPP MPA** filed April 9, 2026; (B)
14 the **MFL-SAC Opposition** filed April 23, 2026, containing the representation that “Plaintiff cites
15 no authority to support the proposition that he can file his Motion for Leave to Amend, as no
16 such authority exists to support his motion”; (C) the **May 6, 2026 Reply Declaration of Tyler J.**
17 **O’Connell** in support of the Special Motion to Strike, including paragraph 6 and Exhibit A; and
18 (D) the duplicative-title **O’Connell Reply Declaration** filed on or about May 8, 2026. Each filing
19 implicates one or more of the three section 128.7(b) certifications, and the four taken cumulatively
20 warrant the relief in Section IX.

22 **III. SAFE-HARBOR COMPLIANCE; CCP SECTION 128.7(C)(1)**

23 Section 128.7(c)(1) requires service of the proposed motion on the offending party at least 21 days
24 before filing, to give the offending party the opportunity to withdraw or appropriately correct the
25 offending filing. (CCP, section 128.7(c)(1); Day v. Collingwood (2006) 144 Cal.App.4th 1116,
26 1131 to 1132.) The Court of Appeal in Day held that strict, not substantial, compliance is required.
27 Plaintiff has strictly complied.

28 **(A) Service date.** Plaintiff served on Defendant and Counsel a CCP section 128.7(c)(1) safe-harbor

1 notice during the window of **May 5 to May 8, 2026** (the “**May 5 to 8 Safe-Harbor Notice**”). The
2 May 5 to 8 Safe-Harbor Notice supplements and incorporates by reference plaintiff’s prior April
3 22, 2026 safe-harbor correspondence and plaintiff’s April 27, 2026 supplemental safe-harbor letter
4 to the same defense team. (Decl. Rosario, paragraphs 5 to 8; RFJN, Exhibits A and B; see Day,
5 supra, 144 Cal.App.4th at p. 1131.) The operative passage of the May 5 to 8 Safe-Harbor Notice
6 quoted in plaintiff’s prior April 27, 2026 safe-harbor letter, and incorporated by reference into the
7 May 5 to 8 Safe-Harbor Notice, states:

8 “Before May 14, 2026, you may pursue any one of these cure paths: (a) **Withdraw**
9 the offending papers, by filing a Notice of Withdrawal in this case as to each affected
10 pleading; (b) **Appropriately correct** the offending papers, by filing redacted, amended,
11 or supplemental briefs that (i) remove every certification listed in paragraphs 6 through
12 10 below, (ii) disclose the controlling adverse authorities listed in paragraph 11 below,
13 and (iii) state defendants’ position in light of those authorities; **or** (c) **Stand and accept**
14 **exposure**. Failing (a) or (b), plaintiff will, on or after May 15, 2026, pursue all relief
15 permitted by law, including but not limited to motions under Code of Civil Procedure
16 sections 128.7 and 128.5, applications for fees under Code of Civil Procedure section
17 425.16(c)(1) where applicable, and the remedies referenced in plaintiff’s prior April 22,
18 2026 correspondence.” (April 27, 2026 Safe-Harbor Letter, Section 5, **Three exhaustive**
19 **cure paths**; RFJN, Exhibit A.)

20 The May 5 to 8 Safe-Harbor Notice expressly extended the same identifications and demands to
21 the May 6, 2026 O’Connell Reply Declaration and to the duplicative-title May 8, 2026 declaration.
22 (Decl. Rosario, paragraphs 6 to 8.)

23 **(B) Twenty-one-day window.** The 21-day window measured from the May 5 to 8, 2026 service
24 window expired on or about the window of **May 26 to May 29, 2026**, well before the **June 2, 2026**
25 earliest service date for this motion. Plaintiff did not file this motion until the safe-harbor window
26 had closed.

27 **(C) Non-withdrawal.** As of the filing of this motion, Defendant and Counsel have not withdrawn
28 the Anti-SLAPP MPA, the MFL-SAC Opposition, the May 6, 2026 O’Connell Reply Declaration,

1 or the duplicative-title May 8, 2026 declaration, and have not appropriately corrected any of those
2 papers under cure path (b). (Decl. Rosario, paragraphs 9 to 11.)

3 **(D) Strict compliance.** Plaintiff’s papers identify the specific certifications challenged, the spe-
4 cific representations identified, the controlling adverse authorities not disclosed, and the relief
5 requested. (RFJN, Exhibits A and B.) Plaintiff served the safe-harbor notice 21 days before filing
6 this motion, and is filing this motion only after non-withdrawal in the window. That sequence
7 satisfies Day, supra, 144 Cal.App.4th at p. 1131.

8

9 **IV. LEGAL FRAMEWORK; OBJECTIVE STANDARD; CONTINUING-**
10 **CERTIFICATION DUTY**

11 **(A) The three certifications.** Section 128.7(b) provides that, by presenting a pleading, written
12 motion, or other similar paper, an attorney or unrepresented party certifies that to the best of the
13 person’s knowledge, information, and belief, formed after an inquiry reasonable under the circum-
14 stances: **(1)** it is not being presented primarily for an improper purpose (subdivision (b)(1)); **(2)**
15 the legal contentions are warranted by existing law or by a non-frivolous argument for the exten-
16 sion, modification, or reversal of existing law or the establishment of new law (subdivision (b)(2));
17 and **(3)** the factual contentions have evidentiary support, or, if specifically so identified, are likely
18 to have evidentiary support after a reasonable opportunity for further investigation or discovery
19 (subdivision (b)(3)).

20 **(B) Objective standard.** Section 128.7(b)(2) and (b)(3) impose an **objective** standard. A filing
21 violates these subdivisions if “any reasonable attorney would agree that the motion is totally and
22 completely without merit.” (In re Marriage of Falcone & Fyke (2012) 203 Cal.App.4th 964, 974,
23 quoting Peake v. Underwood (2014) 227 Cal.App.4th 428, 440.) Counsel’s subjective belief is not
24 the test.

25 **(C) Continuing-certification duty.** Each later advocacy of an unwithdrawn or uncorrected rep-
26 resentation is a new certification act for purposes of CCP section 128.7(b). (Musaelian v. Adams
27 (2009) 45 Cal.4th 512, 518 to 520.) The CCP section 128.7 paper safe harbor does **not** immunize
28 subsequent inconsistent in-court statements. (Musaelian, supra, 45 Cal.4th at p. 519.) Each oral

1 or written restatement after the May 5 to 8 Safe-Harbor Notice is an independent later-advocacy
2 event under section 128.7(b).

3 **(D) Joint law-firm responsibility.** Section 128.7(c)(1) further provides that “a law firm shall
4 be held jointly responsible for violations committed by its partners, associates, and employees,”
5 absent exceptional circumstances. The four offending filings were drafted, signed, and filed by
6 attorneys of Porter Scott, A Professional Corporation; joint responsibility therefore attaches to the
7 firm. (See also Li v. Majestic Industry Hills, LLC (2009) 177 Cal.App.4th 585, 591 to 593.)

8
9 **V. MERITS GROUND ONE: IMPROPER PURPOSE (CCP SECTION**
10 **128.7(B)(1))**

11 The May 6, 2026 O’Connell Reply Declaration, and the duplicative-title declaration filed on or
12 about May 8, 2026, were presented for an improper purpose within the meaning of CCP section
13 128.7(b)(1).

14 **(A) New fee theory introduced on reply.** Paragraph 6 of the May 6, 2026 O’Connell Reply
15 Declaration introduces, for the first time on reply, a quantified attorney-fee theory keyed to CCP
16 section 425.16(c)(1), supported by Exhibit A (a redacted-summary purporting to summarize Porter
17 Scott’s billing). Neither the Notice of Special Motion to Strike, the moving Anti-SLAPP MPA filed
18 April 9, 2026, nor the supporting moving declaration contained a quantified fee prayer, an hour-
19 by-hour fee summary, or any billing records. The fee theory first appears in the May 6, 2026 Reply
20 Declaration, seven days before the May 13, 2026 originally noticed hearing date. (See Plaintiff’s
21 Motion to Strike May 6 Reply Declaration of Tyler J. O’Connell and Exhibit A, filed May 8, 2026,
22 Transaction ID 79429443, at I to IV.)

23 Introducing a new theory on reply, where the opposing party has no opportunity to address it, is
24 “new matter” prohibited by the San Diego Watercrafts line. (San Diego Watercrafts, Inc. v. Wells
25 Fargo Bank (2002) 102 Cal.App.4th 308, 316; Reichardt v. Hoffman (1997) 52 Cal.App.4th 754,
26 764; Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537 to 1538.) Counsel does not introduce a
27 quantified fee theory on reply against a self-represented plaintiff in order to obtain a careful merits
28 adjudication. Counsel does so to harass and to needlessly increase the cost of litigation, because

1 the only forum in which the opposing party can address that new theory is a contested motion to
2 strike or an emergency sur-reply, both of which require additional work that the offending filing
3 has manufactured.

4 **(B) Duplicative second declaration.** The May 8, 2026 declaration filed by Mr. O’Connell carries
5 a substantially duplicative title and re-injects the same matter that plaintiff had moved to strike
6 that same day in Transaction ID 79429443. A second, duplicative declaration filed in immediate
7 sequence after plaintiff’s strike motion is not a good-faith effort to clarify the record; it is a delib-
8 erate doubling-down designed to force plaintiff to litigate the same paper twice. The presentation
9 falls within section 128.7(b)(1)’s prohibition against papers offered to “harass” or to “needlessly
10 increase the cost of litigation.”

11 **(C) Improper-purpose inference is well grounded.** Falcone & Fyke recognizes that an improper-
12 purpose inference may be drawn from the objective circumstances surrounding the filing. (Falcone
13 & Fyke, supra, 203 Cal.App.4th at p. 975.) Here the objective circumstances include (i) the late
14 introduction of a new fee theory on reply against a self-represented plaintiff; (ii) the redacted-
15 summary exhibit lacking foundation; (iii) the immediate duplicative second declaration after plain-
16 tiff’s strike motion; and (iv) the prior safe-harbor letters specifically warning that this exact type
17 of conduct would draw section 128.7 relief. (Decl. Rosario, paragraphs 6 to 11; RFJN, Exhibits C
18 and D.)

20 **VI. MERITS GROUND TWO: FRIVOLOUS LEGAL CONTENTIONS**

21 **(CCP SECTION 128.7(B)(2))**

22 The Anti-SLAPP MPA filed April 9, 2026, the MFL-SAC Opposition filed April 23, 2026, and the
23 May 6, 2026 O’Connell Reply Declaration in combination present legal contentions not warranted
24 by existing law and made without disclosing the directly adverse controlling California authorities
25 that govern those contentions.

26 **(A) “No such authority exists.”** The MFL-SAC Opposition Introduction page represents that
27 “Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to
28 Amend, as no such authority exists to support his motion.” That representation cannot survive

1 contact with JKC3H8 et al. v. Colton et al. (2013) 221 Cal.App.4th 468, a published Court of
2 Appeal decision that squarely addresses, and resolves in plaintiff’s favor for ordinary narrowing
3 or mooted amendments, the leave-to-amend / section 425.16 intersection. JKC3H8 holds, at the
4 very pages defense counsel did not cite: “Where a plaintiff who has filed a complaint containing
5 causes of action that are based, in part, on protected conduct and therefore potentially subject to
6 a special motion to strike under Code of Civil Procedure section 425.16, subsequently files an
7 amended complaint removing the allegations of protected conduct as a basis for liability, does the
8 filing of the amended complaint render moot a later-filed anti-SLAPP motion based on the original
9 complaint? **We conclude that it does.**” (JKC3H8, supra, 221 Cal.App.4th at pp. 471 to 472.)
10 The opinion’s express “subvert or avoid” limit (id. at pp. 477 to 478) is a narrow guardrail, not a
11 wholesale bar.

12 A representation that “no such authority exists” while JKC3H8 sits in the California Court of Ap-
13 peal reporter, undisclosed, and while plaintiff has called counsel’s attention to it twice in writing,
14 fails section 128.7(b)(2)’s objective standard. (Falcone & Fyke, supra, 203 Cal.App.4th at p. 974.)
15 It also independently violates California Rule of Professional Conduct 3.3(a)(2) (mandatory dis-
16 closure of directly adverse controlling authority known to be not disclosed by opposing counsel).

17 **(B) “Cannot prevail” certifications.** The Anti-SLAPP MPA contains five sets of “cannot prevail
18 / cannot demonstrate / cannot succeed” certifications cataloged in the April 27, 2026 Safe-Harbor
19 Letter at Priority One (P1-1 to P1-5). Each was made without disclosure of (i) Baral v. Schnitt
20 (2016) 1 Cal.5th 376, 396 (step two requires only a “minimal merit” prima facie showing); (ii)
21 Park v. Board of Trustees (2017) 2 Cal.5th 1057, 1062 to 1063 (step one looks to the gravamen of
22 the claim, not to protected activity that is merely evidence of an unprotected wrong); (iii) Wilson
23 v. Cable News Network, Inc. (2019) 7 Cal.5th 871 (gravamen analysis controls step one); and
24 (iv) Flatley v. Mauro (2006) 39 Cal.4th 299 (anti-SLAPP unavailable for illegal conduct as a
25 matter of law or admission). A “cannot prevail on the merits” certification that fails to apply Park’s
26 gravamen step-one analysis and ignores Baral’s minimal-merit threshold is not a non-frivolous
27 legal contention; it is an inversion of the controlling standard.

28 **(C) Continuing-advocacy events.** The May 6, 2026 O’Connell Reply Declaration, and the duplicative-

1 title May 8, 2026 declaration, each re-advocate the same “cannot prevail” and “no such authority”
2 framings without disclosing JKC3H8, Park, Baral, Wilson, or Flatley. Under Musaelian, each
3 such re-advocacy is an independent later-certification event under section 128.7(b)(2). (Musaelian,
4 supra, 45 Cal.4th at pp. 518 to 520.)

5 **(D) Rule 3.3(a)(2) overlap.** The plain language of California Rule of Professional Conduct
6 3.3(a)(2) requires a lawyer, in proceedings before a tribunal, not to fail to disclose legal author-
7 ity in the controlling jurisdiction known to be directly adverse to the position of the client and not
8 disclosed by opposing counsel. That duty runs **to the tribunal directly**. By keeping the control-
9 ling adverse authorities out of the moving and reply papers while continuing to certify the contrary,
10 defense counsel breached Rule 3.3(a)(2). The Rule 3.3(a)(2) breach is independently actionable
11 under California Business and Professions Code section 6068(d). For section 128.7 purposes, the
12 Rule 3.3(a)(2) breach reinforces the conclusion that no reasonable attorney would, on objective
13 review of the record, have certified the legal contentions in the four filings without first disclosing
14 the controlling authorities.

15
16 **VII. MERITS GROUND THREE: FACTUAL CONTENTIONS LACK-**
17 **ING EVIDENTIARY SUPPORT (CCP SECTION 128.7(B)(3))**

18 The May 6, 2026 O’Connell Reply Declaration and the duplicative-title May 8, 2026 declara-
19 tion present factual contentions lacking evidentiary support within the meaning of CCP section
20 128.7(b)(3).

21 **(A) Personal knowledge under Evidence Code section 702.** Mr. O’Connell’s declaration pur-
22 ports to attest to the hours billed and the rates charged by Porter Scott attorneys on the Anti-SLAPP
23 motion. Mr. O’Connell lays no foundation establishing his personal knowledge of the underlying
24 billing records, the method of their preparation, or their completeness. A conclusory statement that
25 hours were expended at a stated rate does not satisfy Evidence Code section 702. (See Plaintiff’s
26 Motion to Strike May 6 Reply Declaration, Transaction ID 79429443, at III.)

27 **(B) Business records under Evidence Code section 1271.** Exhibit A to the May 6, 2026 O’Connell
28 Reply Declaration is a redacted summary, not the underlying contemporaneous billing records.

1 Mr. O’Connell lays no foundation for the mode of preparation of Exhibit A, the identity of the
2 records from which it was derived, the regularity of the record-keeping practice, or any of the
3 further showings required by section 1271. A redacted summary without such foundation is not a
4 business record.

5 **(C) Best evidence / secondary evidence under Evidence Code section 1521.** Exhibit A purports
6 to summarize underlying billing records that are not before the Court. Under section 1521, sec-
7 ondary evidence is inadmissible unless the proponent establishes that the original is unavailable,
8 or establishes the admission of the original’s existence and content. Neither showing is made in
9 the May 6, 2026 O’Connell Reply Declaration.

10 **(D) Filing without evidentiary support after objection.** Plaintiff’s contemporaneous Eviden-
11 tiary Objections (filed May 8, 2026 along with the Motion to Strike May 6 Reply Declaration)
12 put Mr. O’Connell on notice that the underlying contentions lacked evidentiary support under
13 sections 702, 1271, and 1521. Notwithstanding that notice, Mr. O’Connell filed a substantially
14 duplicative declaration on or about May 8, 2026 that does not cure the foundation defects. The
15 continued advocacy of factual contentions without curing the foundation defects is itself a fresh
16 section 128.7(b)(3) act.

18 **VIII. CUMULATIVE EFFECT; ATTORNEY AND LAW FIRM JOINT** 19 **EXPOSURE**

20 The four filings, taken together, present a cumulative pattern that warrants both monetary and
21 non-monetary sanctions:

- 22 (i) **The Anti-SLAPP MPA** advances “cannot prevail” certifications without disclosure of Baral,
23 Park, Wilson, or Flatley;
- 24 (ii) **The MFL-SAC Opposition** Introduction page asserts that “no such authority exists” while
25 JKC3H8 sits undisclosed;
- 26 (iii) **The May 6, 2026 O’Connell Reply Declaration** introduces, for the first time on reply, a
27 quantified attorney-fee theory and a foundation-defective Exhibit A; and
- 28 (iv) **The duplicative-title May 8, 2026 O’Connell declaration** doubles down on the same matter

1 after plaintiff's Motion to Strike (Transaction ID 79429443) and Evidentiary Objections were
2 on file.

3 Each filing was drafted, signed, or filed by an attorney of Porter Scott, A Professional Corpora-
4 tion. Joint and several responsibility of the firm therefore attaches under CCP section 128.7(c)(1).
5 Plaintiff is a self-represented party; the cumulative cost of opposing four overlapping, certification-
6 deficient filings is not trivial. CCP section 128.7(d) authorizes monetary sanctions limited to what
7 is sufficient to deter repetition, plus non-monetary directives, plus referral. The cumulative record
8 supports each.

9 The Court's prior pleading-management discretion under CCP sections 472, 473(a)(1), 576, and
10 425.16(f) is not displaced by this motion; rather, this motion asks the Court to police candor and
11 certification only, leaving the merits of the underlying anti-SLAPP motion and demurrer to be
12 heard on the June 24, 2026 line on their own briefing.

14 IX. RELIEF REQUESTED

15 Under CCP section 128.7(d), the Court may impose monetary sanctions limited to what is sufficient
16 to deter repetition, and non-monetary sanctions. Plaintiff requests:

- 17 1. **Monetary sanctions** in an amount within the Court's discretion sufficient to deter repetition
18 (CCP section 128.7(d)(1)), or in the alternative payable to Plaintiff to reimburse the reason-
19 able expenses Plaintiff incurred opposing the offending filings (CCP section 128.7(d)(2)).
20 The reasonable-expense category includes, at minimum, the time and out-of-pocket cost of
21 preparing and filing Plaintiff's Motion to Strike May 6 Reply Declaration (Transaction ID
22 79429443, filed May 8, 2026), Plaintiff's Evidentiary Objections (filed May 8, 2026), Plain-
23 tiff's safe-harbor correspondence chain, and the present sanctions motion.
- 24 2. **An order striking** paragraph 6 and Exhibit A of the May 6, 2026 Reply Declaration of
25 Tyler J. O'Connell, and any later-filed declaration purporting to incorporate the same matter,
26 including the duplicative-title O'Connell declaration filed on or about May 8, 2026.
- 27 3. **A directive of affirmative acknowledgment:** that in any future brief, declaration, or oral
28 argument on or after June 24, 2026 in this case, Defendant and Counsel shall affirmatively

1 cite and acknowledge the controlling adverse authorities previously not disclosed, including
2 JKC3H8 v. Colton (2013) 221 Cal.App.4th 468; Park v. Board of Trustees (2017) 2 Cal.5th
3 1057; Baral v. Schnitt (2016) 1 Cal.5th 376; Wilson v. Cable News Network, Inc. (2019) 7
4 Cal.5th 871; and Flatley v. Mauro (2006) 39 Cal.4th 299.

5 4. **Referral** of Mark G. Tapp, Tyler J. O’Connell, Mason Schubert, and Sarah J. Blithe to the
6 State Bar of California under California Business and Professions Code section 6086.7 and
7 California Rules of Professional Conduct, rules 3.3(a)(1), 3.3(a)(2), and 3.4(b), for evaluation
8 of professional-conduct violations described in Sections V to VII above.

9 5. **Joint and several responsibility** of Porter Scott, A Professional Corporation, with the indi-
10 vidual signatory attorneys under CCP section 128.7(c)(1).

11 6. A **written ruling per objection** on this motion and on the contemporaneous Evidentiary
12 Objections under CRC 3.1306(a) and Reid v. Google, Inc. (2010) 50 Cal.4th 512, 532.

13 7. Such further relief, monetary or non-monetary, as the Court deems just under CCP section
14 128.7(d) and the Court’s inherent authority.

15 The relief above is calibrated to the “sufficient to deter” ceiling in section 128.7(d) and to the
16 controlling-authority disclosure command of California Rule of Professional Conduct 3.3(a)(2).
17 The non-monetary directives are designed to ensure that the June 24, 2026 hearing line, and any
18 subsequent stage of this litigation, proceeds with the controlling adverse authorities properly placed
19 before the Court.

20
21 **X. PRAYER AND CONCLUSION**

22 Plaintiff respectfully requests that the Court **GRANT** this motion in whole and enter the relief
23 identified in Section IX above. Concurrent with this Memorandum, Plaintiff lodges a **Proposed**
24 **Order** that tracks Section IX and that is supported by the accompanying Declaration of Dylan
25 Franciscus Rosario and Request for Judicial Notice.

26
27 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive

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Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this memorandum.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1113(d)	Page limit for memorandum	Length within applicable limit	Page count
2	CRC 3.1113(b)	Required sections (facts, law, argument)	Organized sections in body	Memorandum body
3	CRC 3.1113(j)	Incorporation by reference where used	ROA placeholders in text	Body sections
4	CCP 1005(b)	Reply timing cross-reference where applicable	Reply deadline cited if applicable	Body